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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
PHILLIPS, SPALLAS & ANGSTADT LLP;
PRIYA D. NAVARATNASINGHAM;
ALBERTO REYNA;
MICHAEL R. CHAMBERS;
CARBONE, SMITH & KOYAMA;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

**PLAINTIFF'S OPPOSITION
PREAMBLE (RECEIPT CHAIN AND
TRIBUNAL RELIANCE)**

Date:
Time:
Dept.:
Judge:
Reservation No.:

May 12, 2026
9:00 a.m.
301

I. THE “SMOKING-GUN” PREAMBLE — WHAT THIS OPPOSITION IS ABOUT

This Opposition is grounded in the certified record of a fraud perpetrated upon this Court. At the heart of this case is a sequence of events where defense counsel, acting as officers of the court, procured a series of structural rulings against Plaintiff by representing that they had never received critical evidence—representations that the record now proves were false.

I.A. THE COURT’S ARTICULATED RELIANCE

On February 28, 2025, the Court explicitly stated the basis for the credibility it had afforded the defense and the subsequent rulings against Plaintiff:

“I’m not going to question a lawyer’s remarks regarding what they have and don’t have. They are an officer of the Court, and they are supposed to conduct themselves appropriately before the Court. If they are not, there are other sanctions that they could suffer here. So far I haven’t heard or seen anything on the part of the current law firm which tells me that they have conducted themselves improperly.” — The Court (Garrett L. Wong), Hr’g Tr. Feb. 28, 2025, pp. 291:26–292:7.

I.B. THE RULINGS PROCURED FROM THAT RELIANCE

Based on this misplaced reliance on defense counsel’s representations of non-receipt, the Court issued the following structural rulings that stripped Plaintiff of his ability to present his case:

- **MIL No. 1 Denied** (Jan. 27, p. 41:3–11)
- **911 CDs Excluded** (Jan. 27, p. 38:22–25)
- **911 Transcripts “Never Admitted”** (Jan. 27, p. 39:18–24)
- **Continuance Denied** (Feb. 18, p. 181)
- **§ 473 Relief Rejected** (Feb. 18, p. 181:20–25)
- **Burden-Shift Imposed** (Feb. 28, p. 293:1–3)
- **Supplemental Report Excluded** (RT 7, p. 156:24–28)

I.C. THE ADMISSION THAT PROVED THE MISREPRESENTATION

On the seventh day of trial, after months of categorical denials, defense counsel admitted possession:

1 “Sure. They were provided by Dolan. He has had them for whatever, sure.” — Priya D.
2 Navaratnasingham, RT 7 (Apr. 16, 2025), p. 213, ll. 13–15.

4 **II. THE NINE-POINT EVIDENTIARY CHAIN OF DEFENSE RECEIPT**

5 The following points document that the denials of receipt were irreconcilable with the actual state
6 of the defense’s file and knowledge:

7 **(a) Aug. 18, 2022 — Service of 911 audio (Dolan to defense counsel)**

- 8 • **Proof artifact:** Service of 911 audio by Dolan to defense counsel
- 9 • **Pincite / Source:** Jessup testimony, Hr’g Tr. Feb. 18, 2025, pp. 139–140
- 10 • **Who had notice:** Chambers / CSK

11 **(b) Aug. 18, 2022 — Rosario deposition (Chambers present)**

- 12 • **Proof artifact:** Rosario deposition — Chambers present
- 13 • **Pincite / Source:** Rosario depo tr.
- 14 • **Who had notice:** Chambers

15 **(c) Sept. 30, 2022 — Abdelhalim deposition (Chambers present)**

- 16 • **Proof artifact:** Abdelhalim deposition — Chambers present
- 17 • **Pincite / Source:** Abdelhalim depo tr.
- 18 • **Who had notice:** Chambers

19 **(d) May 4, 2023 — CSK → PSA file transfer (Substitution of Attorney)**

- 20 • **Proof artifact:** CSK → PSA file transfer (Sub of Atty)
- 21 • **Pincite / Source:** CT record
- 22 • **Who had notice:** CSK → PSA

23 **(e) Feb. 1, 2024 — PSA subpoena for identical materials**

- 24 • **Proof artifact:** PSA subpoena for identical materials
- 25 • **Pincite / Source:** Order CA1147102-021
- 26 • **Who had notice:** PSA

27 **(f) Feb. 26, 2024 — PSA receives production from SFPD**

- 28 • **Proof artifact:** PSA receives production from SFPD

- **Pincite / Source:** Report 210079556
 - **Who had notice:** PSA
 - (g) **Sept. 9, 2024 — FROG/SROG (CAD log identification)**
 - **Proof artifact:** Plaintiff’s FROG/SROG identifying CAD log
 - **Pincite / Source:** FROG/SROG records
 - **Who had notice:** PSA
 - (h) **Feb. 18, 2025 — Jessup (“since 2021”)**
 - **Proof artifact:** Jessup testifies “since 2021”
 - **Pincite / Source:** Hr’g Tr. Feb. 18, 2025, p. 139:11
 - **Who had notice:** PSA
 - (i) **Apr. 16, 2025 — Admission of receipt**
 - **Proof artifact:** **ADMISSION OF RECEIPT**
 - **Pincite / Source:** RT 7, 213:13-15
 - **Who had notice:** PSA
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III. THE LAWS-BROKEN MATRIX

- (a) **Bus. & Prof. Code § 6068(d)**
 - **Provision:** Duty not to mislead judge
 - **Defense conduct:** Jan 27, Feb 18 denials re receipt
- (b) **Bus. & Prof. Code § 6128(a)**
 - **Provision:** Attorney deceit / collusion
 - **Defense conduct:** Intentional deception re: file transfer and receipt
- (c) **Cal. Rule of Prof. Conduct 3.3(a)**
 - **Provision:** Candor to tribunal
 - **Defense conduct:** “We never received these CDs, certainly”
- (d) **Cal. Rule of Prof. Conduct 8.4(c)**
 - **Provision:** Dishonesty / Misrepresentation
 - **Defense conduct:** Sustained pattern across four hearings

1 (e) **CCP § 128.5**

- 2 • **Provision:** Bad-faith actions
3 • **Defense conduct:** Procurement of exclusion through false statements

4 (f) **Civ. Code § 1572(3)**

- 5 • **Provision:** Actual fraud (suppression)
6 • **Defense conduct:** Concealment of receipt for 893 days

7 (g) **Civ. Code § 1573**

- 8 • **Provision:** Constructive fraud
9 • **Defense conduct:** Breach of duty of candor; scienter-light civil analog to officer-of-court
10 obligations

11 **Constructive fraud as the civil analog to the Court’s officer-of-court reliance.** The February
12 28, 2025 colloquy (Hr’g Tr. pp. 291:26–292:7) is not rhetorical window dressing; it is evidence
13 that the tribunal extended **confidential institutional reliance** to counsel’s representations about
14 possession and provenance. Civ. Code § 1573 supplies the civil-side vocabulary for breach of that
15 kind of duty where the record supports misleading acts or nondisclosures without requiring the
16 same scienter proof as intentional misrepresentation.

17
18 **CONCLUSION FOR PREAMBLE:** The present motion (Demurrer/Anti-SLAPP) must be eval-
19 uated against this record. Defense cannot use the “fruit” of their deception to justify the dismissal
20 of a case they corrupted.

Dated: April 18, 2026



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